

**SUBSTITUTE FOR
HOUSE BILL NO. 4865**

A bill to amend 2000 PA 92, entitled
"Food law,"
(MCL 289.1101 to 289.8111) by adding section 7130.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 7130. (1) Baby food that is sold or offered for sale in**
2 **this state must meet the standards, action levels, regulatory**
3 **limits, or tolerances established by the United States Food and**
4 **Drug Administration for toxic elements.**

5 **(2) Beginning on January 1, 2027, a food processor that**
6 **manufactures baby food that will be sold, offered for sale, or**
7 **distributed in this state shall test a representative sample of**
8 **each lot of baby food product for toxic elements at a proficient**
9 **laboratory. When conducting a test under this subsection, the**



1 proficient laboratory shall quantify each toxic element to at least
2 6 micrograms of the toxic element per kilogram of food. A
3 proficient laboratory shall provide the food processor that
4 manufactured the baby food with the results of each test performed
5 under this subsection. The food processor that manufactured the
6 baby food shall make the results available to the department on
7 request.

8 (3) If a lot of baby food product tested under subsection (2)
9 includes a baby food product that was manufactured over a period of
10 more than 30 days, the representative sample must include a baby
11 food product that was manufactured in each 30-day period.

12 (4) A food processor that manufactures baby food may test
13 either bulk or packaged baby food products.

14 (5) If a baby food product exceeds the standards, action
15 levels, regulatory limits, or tolerances under subsection (1), the
16 food processor that manufactured the baby food shall dispose of the
17 baby food product. If the baby food product has already been sold
18 when the test results under subsection (2) are made known to the
19 food processor that manufactured the baby food and the baby food
20 product is found to exceed the standards, action levels, regulatory
21 limits, or tolerances under subsection (1), the food processor that
22 manufactured the baby food shall issue a recall for the baby food
23 product.

24 (6) Beginning on January 1, 2027, a food processor that
25 manufactures baby food shall make publicly available on the food
26 processor's website a list of each baby food product that is sold,
27 offered for sale, and distributed by the food processor and that
28 was subject to testing under subsection (2). The manufacturer's
29 website must also contain the following information:

1 (a) A link to a webpage that provides the test results under
2 subsection (2).

3 (b) A prominent statement that immediately precedes the link
4 under subdivision (a) that states "For information about toxic
5 element testing on this product."

6 (7) The linked webpage described under subsection (6)(a) must
7 make the test results under subsection (2) available to users
8 without the need to provide a universal product code, lot number,
9 or proof of purchase and must provide the following information:

10 (a) Descriptive information that enables the accurate
11 identification of each baby food product. Descriptive information
12 may include, but is not limited to, the baby food product name, a
13 photo of the baby food product, the universal product code, if any,
14 and the size, lot, or batch numbers.

15 (b) The name and level of each toxic element present. This
16 information must remain available on the food processor's webpage
17 described under subsection (6) for the entire shelf life of the
18 baby food product plus 1 month.

19 (c) A link to the United States Food and Drug Administration's
20 website that provides the most recent guidance and information
21 regarding the health effects of the identified toxic elements on
22 fetuses, infants, children, and individuals who are pregnant,
23 planning to become pregnant, or breastfeeding.

24 (8) Beginning January 1, 2027, and in addition to any other
25 labeling requirement, a food processor that manufactures baby food
26 shall include on the label of each baby food product sold, offered
27 for sale, or distributed in this state both of the following:

28 (a) A QR code or other machine-readable code that links to the
29 food processor's webpage described under subsection (6).



1 (b) A statement that reads "For information about toxic
2 element testing on this product, scan the code.".

3 (9) As used in this section:

4 (a) "Baby food" means food packaged in jars, pouches, tubes,
5 or boxes that is represented or purported to be specifically for
6 babies and young children who are less than 2 years of age. Baby
7 food does not include infant formula as that term is defined in
8 section 201 of the federal act, 21 USC 321.

9 (b) "Proficient laboratory" means a laboratory that meets the
10 following requirements:

11 (i) Is accredited under the standards of the International
12 Organization for Standardization and the International
13 Electrotechnical Commission.

14 (ii) Uses an analytical method that is at least as sensitive as
15 the analytical method described in section 4.7 of the document
16 titled "Elemental Analysis Manual (EAM) for Food and Related
17 Products" published by the United States Food and Drug
18 Administration.

19 (iii) Demonstrates proficiency through an independent
20 proficiency test by achieving a z-score that is less than or equal
21 to plus or minus 2 for each identified toxic element.

22 (c) "Representative sample" means a sample that consists of a
23 number of units that are drawn based on rational criteria, such as
24 random sampling, and are intended to ensure that the sample
25 accurately portrays the material being sampled.

26 (d) "Toxic elements" includes arsenic, cadmium, lead, and
27 mercury.